

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, SEPTEMBER 8, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, September 8, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Friday, September 4, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0089083 JPMorgan Chase Bank v. Abellana, Francine

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion to Enforce Settlement

Plaintiff moves to enforce the settlement agreement filed on August 22, 2025 pursuant to Code of Civil Procedure section 664.6 in the amount of \$5,360. Defendant has not filed any opposition.

Plaintiff's request for judicial notice is granted.

The unopposed motion is granted. (Code Civ. Proc., § 664.6.) The dismissal entered October 6, 2025 is hereby set aside and judgment is entered for plaintiff as against defendant in the amount of \$5,360.

2. M-CV-0091182 The Best Service Co. v. Grigoryan, Harutyun

The motion to set aside default is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0098693 Smith, Charley D v. Murphy, Anna M

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the Complaint

Defendant demurs to the verified complaint filed on August 7, 2026 in this unlawful detainer matter.

A party may demur where the court lacks subject matter jurisdiction, where the pleading does not state facts sufficient to constitute a cause of action, or where the complaint is uncertain. (Code Civ. Proc., § 430.10, subds. (a), (e), (f).) "Uncertainty" is defined as "ambiguous and unintelligible." (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant contends the complaint fails because the subject premises have been discharged in bankruptcy, there is another action pending, the foreclosure was improper and relies on an unperfected lien rendering the sale and sheriff's deed void and ineffective, and the matter is stayed pending appeal pursuant to Code of Civil Procedure section 916(a). Defendant's arguments would require this court to rely on information that is extrinsic to the complaint and for which no request for judicial notice has been made, which would exceed the scope of demurrer. While defendant's moving papers reference two other case numbers (25-23746 and C101114), defendant does not specify what court she is referring to. The mere statement that there is another action pending is insufficient to show this court lacks subject matter jurisdiction. There is no appeal filed in this action so there is no stay currently in place as to this action pursuant to Code of Civil Procedure section 916(a). Additionally, defendant's briefing references a request for damages; however, the complaint prays for holdover damages only, not any other damages, so it is not clear to the court to what defendant is referring. Finally, issues of title may not be litigated by way of a demurrer to the complaint in an unlawful detainer action, and they may only be litigated in a limited way at trial on a post-foreclosure unlawful detainer action. (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385; *Struiksma v. Ocwen Loan Servicing, LLC* (2021) 66 Cal.App.5th 546, 554.) Defendant has raised no basis on which the court could sustain this demurrer. A review of the complaint reveals it adequately alleges facts sufficient to state a cause of action for post-foreclosure unlawful detainer pursuant to Code of Civil Procedure section 1161a and is not "ambiguous and unintelligible" so as to render the complaint uncertain.

Based on the foregoing, the demurrer is overruled. Defendant shall file and serve an answer by September 14, 2026.

4. M-CV-0098802 Woodcreek-Roseville LTD v. Kiara Jones

Motion to Quash

Defendant moves to quash service of summons pursuant to Code of Civil Procedure section 418.10. Plaintiff has not filed any proof of service of summons declaring service of the summons and complaint has been effective. Defendant's motion is therefore premature and is denied without prejudice.

5. S-CV-0049211 Ferriera, Danielle v. Anderson Merchandisers

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Final Approval of the Class Action and PAGA Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) When reviewing the fairness of the settlement, the court is to give due regard to the parties' agreement, ensuring that the agreement is not a product of fraud, overreaching parties, or collusion and that the settlement, as a whole, is fair, reasonable, and adequate. (*7-Eleven Owners for Fair Franchising v. Southland Corp.* (2000) 85 Cal.App.4th 1135, 1145.) A presumption of fairness exists where: (1) the settlement was reached through arms-length bargaining; (2) the investigation and discovery were sufficient to allow class counsel and the court to act intelligently; (3) class counsel is experienced in similar litigation; and (4) there is a small percentage of objectors. (*Ibid.*)

Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699, subd. (I); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.)

The court has carefully reviewed and considered the class action and PAGA action settlement agreement, plaintiff's moving papers, and declarations and exhibits submitted

in support thereof. The court determines a sufficient showing has been made that the settlement, the attorneys' fees of \$99,483.33, the litigation costs of \$23,284.86, the settlement administration costs of \$10,950, and the service award of \$12,800 are fair, adequate, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

The court grants final approval of the class action and approves the attorneys' fees, litigation costs, settlement administration costs, and the service award.

Plaintiff shall submit a proposed final judgment to the court for its review. The court retains jurisdiction over the parties to enforce the terms of the judgment. (Cal. Rules of Court, rule 3.769, subd. (h).)

The court schedules this matter for a final accounting hearing on **January 12, 2027 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a final accounting status report by no later than December 28, 2026.

6. S-CV-0050336 Bal, Gurman v. Amerio, Ashley R

The motion to set aside void judgment and/or voidable judgment and/or equitable relief pursuant to C.C.P. §473(d) is continued to **October 27, 2026 at 8:30 a.m. in Department 32**.

7. S-CV-0050872 Ernst, Cody v. Denham, Michele

Motion for Protective Order

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff's motion for a protective order for an extension of time to respond to defendants' discovery demands is denied as it is supported by insufficient justification. Plaintiff's request for monetary sanctions is likely denied.

Motion to Compel

Defendants Michelle Denham and Lisa Berry move for an order compelling plaintiff to provide responses to defendants' (1) form interrogatories, (2) special interrogatories, and (3) requests for production of documents. No opposition has been filed.

Defendants' request for judicial notice is granted.

The unopposed motion is granted. (Code Civ. Proc., §§ 2030.290; 2031.300.) Within 30 days of service of notice of entry of this order, plaintiff Cody Ernst shall provide verified responses without objections to defendants' (1) form interrogatories, (2) special interrogatories, and (3) requests for production of documents.

Motion to Deem Matters Admitted

Defendants Michelle Denham and Lisa Berry move for an order against plaintiff deeming requests for admission, set one, admitted. No opposition has been filed.

Defendants' request for judicial notice is granted.

The unopposed motion is granted. (Code Civ. Proc., § 2033.280.) Plaintiff Cody Ernst is deemed to have admitted defendants' requests for admissions, set one, numbers 1 through 18.

8. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard N

Defendant Verdera Community Association's Motion for Determination of Good Faith Settlement

Defendant Verdera Community Association moves for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

9. S-CV-0053223 Myatt, Wayne T v. BJs Restaurant Inc.

The demurrer to plaintiff's third amended complaint and motion to strike portions of plaintiff's third amended complaint is continued to **October 20, 2026 at 8:30 a.m. in Department 32.**

10. S-CV-0053802 Dizdarevic, Alen v. Cal. Dept. of Transport.

The two motions to compel are dropped from calendar as no moving papers were filed with the court.

11. S-CV-0053922 Barriga, Annelise v. Richmond Am. Homes

Defendant's Motion for Judgment on the Pleadings

Defendant moves for judgment on the pleadings as to plaintiff's complaint for the remaining count of negligence. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) The court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of

“conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts.” (*Spencer*, 88 Cal.App.5th at 861.)

A cause of action for negligence requires plaintiff to allege: (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.) Based on its review of the complaint in its entirety the court fails to sufficiently allege the necessary elements for a claim for negligence including that defendant owed plaintiff a legal duty which was breached, and which breach proximately or legally caused plaintiff's damages or injuries.

The motion is granted with leave to amend. Any amended complaint shall be filed and served on or before **September 18, 2026**.

12. S-CV-0054972 Dunk N' Run Donuts v. Toyota Motor Sales

Plaintiffs are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$36,362.50 (\$34,862.50 in incurred fees and \$1,500 in anticipated fees) and costs of \$1,095.06 for a total of \$37,467.56. Defendant opposes the motion.

Defendant's objections are overruled in their entirety.

A prevailing party in an action under the Song-Beverly Consumer Warranty Act (Civ. Code, §§ 1790 et seq.) shall recover costs and expenses, including attorneys' fees actually incurred, “determined by the court to have been reasonably incurred . . .” (Civ. Code, § 1794, subd. (d).) A prevailing party includes “the party with a net monetary recovery” or one who “realized its litigation objectives,” including in instances of settlement. (Code Civ. Proc., § 1032, subd. (a)(4); *Kim v. Euromotors West/The Auto Gallery* (2007) 149 Cal.App.4th 170, 179–80.) Here, plaintiffs present evidence that the parties reached a settlement providing for defendant's buyback of the subject vehicle and that defendant would pay plaintiffs' attorneys' fees and costs actually incurred as determined by the court. (Ryu Decl., ¶¶ 2, 32.) While plaintiffs did not provide a copy of the settlement agreement, defendant concedes settlement occurred and provides a copy of the agreement. (Fisher Decl., Exh. B.) The court finds plaintiffs are the prevailing party, having obtained the objective of this litigation, and is entitled to seek an award of attorneys' fees pursuant to Civil Code section 1794(d).

The court must next address whether the request for \$36,362.50 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano*

v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully considered the declaration of counsel Ryu. Plaintiffs' counsel's firm charged hourly rates ranging from \$350 to \$625 per hour for attorneys, \$200 to \$250 for paralegals, and \$125 for support staff. The court finds a reduction in hourly rate is required in light of the cost of comparable legal services in Placer County for a case of this nature. The court finds an hourly rate of \$450 is a reasonable rate for counsel Aryan Sarbaz, \$400 is a reasonable rate for counsel Ezra G. Ryu and for counsel Christopher Im, and \$350 is a reasonable rate for counsel Astrid Souto. The court finds \$150 is a reasonable rate for paralegal services and \$100 is a reasonable rate for other support staff who are not paralegals or attorneys. While plaintiffs present evidence that Udayan Singla is a foreign-licensed attorney working in the office, it does not appear that this individual is Barred in the State of California and no application for *pro hac vice* has been filed or granted. Given the state of the evidence, the court limits this individual's reasonable rate to \$100 as well. Plaintiffs' counsel's firm requests \$200 per hour for a Case Resolution Manager, but as this individual appears to not be an attorney or a paralegal, this individual's hourly rate is likewise reduced to \$100.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Ryu and Exhibit 8 thereto which supports 100.9 hours expended between all attorneys, paralegals, and support staff. Defendant urges the court to make 15% reductions from the overall amounts because of (1) the inefficiency of spreading work across so many individuals and (2) repetitive billing. The court declines defendant's invitation and instead has spent considerable time with the invoice in Exhibit 8 to determine what fees were reasonably incurred. The court observes several instances where the work does not appear necessary for the prosecution of the case (for example, organizing folders and preparing for a Case Management Conference when no appearance was required or requested for that Case Management Conference), instances where the work appears duplicative between multiple attorneys or between attorneys and other staff (for example, where two attorneys each drafted repair chronologies), and instances where there is an insufficient explanation of the work performed for this court to determine if the work was reasonably necessary (for example, "Updates to dos for case"). With these observations in mind, the court determines a reduction of hours is necessary and finds 53.1 total hours (between all counsel, paralegals, and support staff) to be reasonable.

As to costs, plaintiffs seek costs of \$1,095.06 and provides the declaration of counsel Ryu and an invoice of those costs as Exhibit 9 thereto. Exhibit 9 does not adequately explain some of the costs requested. Together with their reply brief, plaintiffs submitted the declaration of Maro Orte and invoices and receipts as Exhibit A thereto. Exhibit 9 to the Ryu declaration together with Exhibit A to the Orte declaration provide sufficient evidence for the costs requested with two exceptions. First, Exhibit 9 includes an item for \$15.50 for a Los Angeles County Superior Court appearance cost. As this case originated and has always pended in Placer County, the court declines to award this amount.

Second, Exhibit 9 includes an item for \$16.28 for a court appearance on September 4, 2025. However, September 4, 2025 was the date of oral argument for the demurrer when oral argument was not requested and the tentative ruling was adopted without hearing. The court declines to award this amount. Costs are otherwise awarded in the amount of \$1,063.28.

Accordingly, plaintiffs' motion is granted in part. Plaintiffs are awarded attorneys' fees of \$16,035 and costs in the amount of \$1,063.28 for a total of \$17,098.28.

As the parties have settled, the court on its own motion vacates the October 20, 2026 case management conference and schedules instead an order to show cause hearing regarding dismissal on **October 20, 2026 at 9:00 a.m. in Department 32.**

13. S-CV-0056043 Hill Top Cntr. v. Kelly Architectural & Planning

The motion to compel responses is continued to **September 15, 2026 at 8:30 a.m. in Department 32.**

14. S-CV-0056372 In re the petition of Barber, Chloe

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337-38.)

15. S-CV-0056512 Jamis-Dow, Carlos v. Vector

Motion for Alternative Service

Plaintiff seeks a court order authorizing mailed service to defendant Vector Construction Development, a Corporation ("Vector") pursuant to Code of Civil Procedure section 413.30. No opposition has been filed.

Code of Civil Procedure section 413.30 provides a court may direct an alternate manner of service "if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter." Here, plaintiff has submitted insufficient evidence of diligence.

While plaintiff's evidence includes Vector's Statement of Information including three different addresses (a Sacramento address as the corporation's principal address, another Sacramento address as the mailing address for the corporation, an Auburn address as the address for the agent for service of process), plaintiff presents no evidence of attempts to serve at these three addresses by service of acknowledgment and receipt pursuant to Code

of Civil Procedure section 415.30. Plaintiff presents no evidence of any efforts to personally serve at one of the Sacramento addresses.

Plaintiff states that the individual defendant Adrian Watson has refused to accept service on behalf of Vector. However, Vector's Statement of Information states that defendant Watson is Vector's CEO, Secretary, CFO, and President. All of these designations are listed in Code of Civil Procedure section 416.10(b) as individuals who may be served to effect service on a corporation.

Moreover, a corporate defendant may be served on the Secretary of State with a court order so approving. (Corp. Code, § 1702.) Plaintiff does not explain how the alternative service requested is more likely to provide actual notice than service on the Secretary of State.

Based on the foregoing, plaintiff has shown insufficient evidence of diligence to justify an order authorizing alternative service, nor has plaintiff shown why service on the Secretary of State would be less likely to provide actual notice to Vector than by way of the requested alternative service. The motion is denied.

16. S-CV-0057432 Galvez, Peter v. Elias, Shelby

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Set Aside Entry of Default

Defendant Capitol City Real Estate, Inc. ("Capitol City") moves to set aside the May 18, 2026 entry of default against it pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

Preliminarily, plaintiff's opposition is untimely filed without explanation. Nonetheless, the court exercises its discretion to consider all briefing submitted in this matter.

The court may "upon any terms as may be just" set aside default due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) A motion to set aside default must be made "within a reasonable time, in no case exceeding six months" from the entry of default. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence and must bring the motion within 180 days. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant's motion is timely brought within approximately five weeks of entry of default. As to grounds for relief, defense counsel declares their firm was retained once defendant Shelby Elias (not a party to this motion) was served on April 17, 2026. The firm reviewed the court's online docket and saw no indication plaintiff had sought entry of default as to defendant Capitol City and prepared an answer for filing on May 26, 2026. The answer was rejected and immediately resubmitted for filing on May 28, 2026. Counsel noted the answer did not immediately appear on the docket so continued to

monitor the docket. On June 15, 2026, defense counsel saw the docket reflected an entry of default as against Capitol City that predated the May 28, 2026 answer and only received notice the answer had been rejected on June 24, 2026. Defense counsel reached out to plaintiff's counsel regarding setting aside default by stipulation, but plaintiff's counsel did not respond to the request. Defendant has shown sufficient "mistake, inadvertence, surprise, or excusable neglect" within the meaning of Code of Civil Procedure section 473(b).

Defense counsel also declares that Capitol City did not receive the service of summons and complaint, while also acknowledging that the proof of service appears to show facially valid service. As the motion is not brought pursuant to Code of Civil Procedure section 473.5, this information is extraneous to the instant motion. Plaintiff's evidence that plaintiff's counsel had reached out to defense counsel prior to the entry of default to enquire whether counsel was representing both defendants and that defense counsel did not respond shows that both counsel would be best served by timely responding to their correspondence; however, this evidence does not provide a basis on which to deny the motion.

Based on the foregoing, the motion is granted. Default of defendant Capitol City entered May 18, 2026 is hereby set aside. Defendant Capitol City shall file and serve its answer to the complaint by September 18, 2026.

17. S-CV-0058373 Arbaugh, Matthew v. Kennedy, Wayne

Order to Show Cause re Preliminary Injunction

Plaintiff seeks a preliminary injunction against defendants Wayne Kennedy, Lars Nielsen, and Eric Webb pursuant to Code of Civil Procedure sections 526 and 527.

Before reaching the merits of this motion, there are a number of procedural issues that must be addressed. Preliminarily, there is no evidence in the court's file the August 3, 2026 application for TRO and OSC re preliminary injunction were ever served on any party, nor is there any evidence in the court's file that the summons and complaint were served on any party. These issues are raised by defense counsel James A. Fillipin. While the issue of service of the moving papers may have been waived by all three named defendants filing substantive oppositions, plaintiff is nonetheless directed to promptly serve the summons, complaint, and moving papers on all defendants if he has not already done so and shall file proofs of service as appropriate.

Defendant Eric Webb submits his opposition to preliminary injunction and declaration in support thereof. However, his declaration is not signed under penalty of perjury pursuant to Code of Civil Procedure section 2015.5. Defendant is afforded the opportunity to re-file the declaration, ensuring it is signed and dated pursuant to Code of Civil Procedure section 2015.5.

The court on its own motion continues the order to show cause hearing re preliminary injunction to be heard on **October 20, 2026 at 8:30 a.m. in Department 32**. The temporary restraining order issued on August 5, 2026 shall continue until the court rules on the preliminary injunction. Other than the few documents outlined above, no further briefing is permitted.
